

PAPINI VS. PAPINI**CASE NUMBER: 24CV-0205898**

Tentative Ruling on Order to Show Cause Re: Contempt: An Order to Show Cause Re: Contempt (“OSC”) issued on September 21, 2026, to Sherri Papini for failure to comply with this Court’s December 26, 2025 Order granting Plaintiff’s Motion to Compel Answers to Form Interrogatories, and Response to Request for Production of Documents, and Request for Sanctions. Proper proof of personal service of the OSC is on file. No response to the OSC has been filed.

The elements that support punishment for contempt are (1) a valid court order; (2) the alleged contemnor’s knowledge of the order; and (3) noncompliance. *In Re Marcus* (2006) 138 Cal.App.4th 1009. An individual may be held in contempt of court for “disobedience of any lawful judgment, order, or process of the court.” CCP §1209(a)(5). If, after investigation and hearing, the individual is found guilty of contempt, they may be punished with a fine not to exceed \$1000 or imprisonment not to exceed five days. CCP §1218(a). They may be ordered to pay the moving party’s attorney’s fees and costs. CCP §1218(a). If the contempt results from the individual’s failure to perform an act that is within their power to perform, they may be imprisoned until they have performed the act. CCP §1219(a).

Because the OSC hearing may result in depriving Defendant of her physical liberty, she has a due process right to court-appointed counsel if she demonstrates that she is financially unable to obtain counsel on her own. *Iraheta v. Superior Court* (1999) 70 Cal.App.4th 1500, 1503; *Lassiter v. Department of Social Services* (1981) 452 U.S. 18, 25; *Salas v. Cortez* (1979) 24 Cal.3d 22; *Conservatorship of Sides* (1989) 211 Cal.App.3d 1086, 1091-1092. The parties are ordered to attend today’s hearing prepared to set a date for an evidentiary hearing on the Order to Show Cause re Contempt. Defendant must also be prepared to address the issue of her eligibility for court-appointed counsel to represent her only at the OSC hearing.

PERRY VS. COUNTY OF SHASTA**CASE NUMBER: 26CV-0209982**

This matter is on calendar for hearing on Petitioner’s Motion for Stay of Enforcement. Upon review of the file, the Court notes that Petitioner attempted to file a Stipulation and Proposed Order staying enforcement on September 10, 2026. That Stipulation would moot the Motion for Stay. However, the clerk rejected the attempted filing because the Proposed Order was not lodged as a separate document as required by Local Rule 5.06. In the interest of judicial economy, the Court will continue hearing on this Motion again, to permit the parties to properly file their Stipulation and Order for the Court’s consideration.

Additionally, the Court notes that Petitioner has not filed and served their opening brief, which was due on September 7, 2026. **The parties are ordered to appear today to discuss the status of the case.**

RUPP VS. FCA US LLC, ET AL.**CASE NUMBER: 26CV-0210538**

Tentative Ruling on Demurrer: Defendant FCA US, LLC demurs to the First, Second, Third, Fourth, and Sixth Causes of Action of the Complaint filed by Plaintiff Bryan Rupp on June 23, 2025. Plaintiff opposes the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Andre Gahan provides evidence of compliance with the meet and confer requirements.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the First Cause of Action, Second Cause of Action, and Third Cause of Action for violation of Civ. Code 1793, Fourth Cause of Action of breach of implied warranty, and the Sixth Cause of Action for fraudulent inducement-concealment.

First, Second, and Third Causes of Action. Defendant demurs to the First, Second, and Third Causes of Action on the grounds that they are barred by the statute of repose and statute of limitations.

Statute of Repose. CCP § 871.20 was effective as of January 1, 2025, and provides a statute of limitations for actions for restitution or replacement of certain motor vehicles, which must be commenced within one year after the expiration of the applicable express warranty and cannot be brought later than 6 years after the date of original delivery of the vehicle.

Here, the vehicle was purchased on September 15, 2018, therefore the time to file suit would have expired on September 15, 2024, prior to the filing of the complaint and the effective date of CCP § 871.20. “If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.” *Rosefield Packing Co. v. Superior Court of San Francisco* (1935) 4 Cal.2d 120, 122. The Court finds that Plaintiff was not given reasonable opportunity to exercise his remedy, therefore retroactive application of CCP § 871.21 is unconstitutional. The Demurrer on the is **OVERRULED** on the grounds that the claims are barred by the statute of repose.

Statute of Limitations. Defendant also argues that the causes of action are barred by the statute of limitations set forth in Cal. Comm. Code § 2725. Cal Comm. Code § 2725 provides any action for breach of contract for sale must be commenced within four years after it has accrued.

A cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made,

except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.

Cal. Com. Code § 2725(2).

Defendant argues that Cal. Com. Code § 2725 bars Plaintiff's Song-Beverly claims because Plaintiff purchased the vehicle on September 15, 2018, and did not file the Complaint until June 23, 2025, six years and eight months later. Plaintiff contends that the cause of action did not accrue on the date of sale, but upon Plaintiff's discovery of the breach. Both the express language of Cal. Com. Code § 2725 and case law instruct that a cause of action for breach of express warranty does not necessarily accrue upon sale or delivery. "This conclusion is consistent with the policy of the Act requiring buyers to give the seller of a "lemon" automobile a reasonable opportunity to repair it. (See Civ. Code, § 1793.2, subds. (d)(1) and (e)(1).) If we adopted the position urged by respondent and held that a cause of action for breach of express warranty accrues on tender of delivery, before the seller has an opportunity to repair any defects, we would undermine the legislative purpose that the parties attempt to resolve any deficiencies in performance before resorting to the remedies provided in the Act. In light of our conclusion that actions for breach of warranty under the Act and under the California Uniform Commercial Code are governed by the same statute of limitations, the same rule of accrual must apply to both causes of action. Application of California Uniform Commercial Code section 2725, subdivision (2) provides this consistency while meeting the policies of the Act." *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal. App. 3d 205, 218–19.

Here, neither the Complaint nor the Opposition identifies a date of accrual (a date of discovery of the alleged breach) or when the last repair attempt was made. The Complaint alleges only vaguely that the fraudulent conduct regarding the defect was not discovered until "shortly before" the complaint was filed. The Complaint is therefore uncertain and ambiguous, but Defendant did not demur on those grounds. "A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. (*Moseley v. Abrams* (1985) 170 Cal.App.3d 355, 359–360.) In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. (*Mangini v. Aerojet-General Corp.* (1991) 230 Cal.App.3d 1125, 1155, 281 Cal.Rptr. 827.)" *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal. App. 4th 1397, 1403. Here, the Complaint does not clearly and affirmatively show the action is barred based on the applicable statutes of limitations. Therefore, the Demurrer is **OVERRULED** on the grounds that the claims are barred by the statute of limitations.

Fourth Cause of Action. Defendant also demurs to the Fourth Cause of Action for breach of implied warranty on the grounds that the cause of action is barred by the statute of limitations. Likewise, the implied warranty of merchantability provided by Civ. Code § 1791.1(c) may be breached by a latent defect undiscoverable at the time of sale. The statute of limitations therefore does not necessarily begin to run at the time of tender of delivery but may accrue later. *Mexia v. Rinker Boat Co, Inc.* (2009) 174 Cal.App.4th 1297. Therefore, the Demurrer is **OVERRULED** on the grounds that the claim is barred by the statute of limitations.

Sixth Cause of Action. Defendant demurs to the Sixth Cause of Action alleging Fraudulent Inducement-Concealment on the grounds that the claim is barred by the statute of limitations, Plaintiff fails to allege fraud with specificity, Plaintiff did not establish a duty to disclose, and

because the claim is barred by the Economic Loss Rule.

Statute of Limitations. There is a three-year statute of limitations for “[a]n action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake. Civ. Code § 338(d). Again, the Complaint merely alleges that the wrongful conduct was not discovered until “shortly before” the filing of the Complaint following Defendant’s unsuccessful attempts to repair the defects. For the same reasons as stated above, the Complaint does not clearly and affirmatively show the action is barred based on the applicable statutes of limitations. Therefore, the Demurrer is **OVERRULED** on the grounds that the claim is barred by the statute of limitations.

Specificity. Defendant asserts that Plaintiff’s Sixth Cause of Action is not pled with the requisite specificity. Fraud in the inducement occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable. *Duffens v. Valenti* (2008) 161 Cal. App. 4th 434, 449. The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.] *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

Fraud allegations must be pled with more detail than other causes of action. The facts constituting the fraud, including every element of the cause of action, must be alleged factually and specifically. The objectives are to give the defendant notice of definite charges which can be intelligently met, and to permit the court to determine whether, on the facts pleaded, there is any foundation, prima facie at least, for the charge of fraud. *Apollo Cap. Fund, LLC v. Roth Cap. Partners, LLC* (2007) 158 Cal. App. 4th 226, 240. In cases involving fraud, allegations as to matters which are peculiarly within the knowledge of the defendant, and as to which the plaintiff can learn only from statements made to them by others, may be made on information and belief. Less certainty is required in pleading such facts than in pleading facts presumptively or actually within the knowledge of the plaintiff. *Lewis v. Beeks* (1948) 88 Cal. App. 2d 511, 521.

Here, Plaintiff alleges that the 2018 Chrysler Pacifica he purchased has several defects many of which cause safety issues when the subject vehicle is being driven. Plaintiff further alleges that Defendant was aware of the defects but failed to disclose to Plaintiff at the time of the sale. Defendant had knowledge of the defects through sources not available to consumers. Plaintiff would not have purchased the vehicle had he known about the safety issues. Plaintiff unknowingly exposed himself to the risk of accident, injury, and/or liability to others. Plaintiff alleged that Defendant knowingly and intentionally concealed the material facts. The Court finds that Plaintiff has pled each element of fraudulent inducement-concealment with the required specificity and the Demurrer is **OVERRULED**.

Duty to disclose. Defendant also argues that the Sixth Cause of Action fails because a transactional relationship giving rise to a duty to disclose has not been alleged. Concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes

partial representations but also suppresses some material facts. *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311. “Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a “transaction” between the plaintiff and the defendant.” *Id.* If a fiduciary relationship does not exist between the parties of a transaction, a fraudulent concealment claim may be brought (1) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (2) when the defendant actively conceals a material fact from the plaintiff; and (3) when the defendant makes partial representations but also suppresses some material facts. *Id.* “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” *Id.* “Under California law, manufacturer warranties that accompany the sale of a vehicle without regard to the substantive terms of the sale contract between the buyer and the dealer are independent of the sale contract.” *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825, 837.

In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828, the First District Court of Appeal found plaintiffs sufficiently alleged a transactional relationship with Nissan by alleging they purchased a vehicle from a Nissan dealership, with an express warranty backed by Nissan, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Here, Plaintiff fails to allege where the vehicle was purchased from, that the vehicle was purchased from an authorized dealership, and that Defendant’s authorized dealerships are agents for purposes of the sale. Under *Dhital*, Plaintiff fails to allege sufficient facts to establish a duty to disclose.

Plaintiff argues that by entering a warranty contract, the parties established a preexisting relationship giving rise to a duty to disclose. The existence of an express warranty that is provided as part of the sale of a new vehicle does not establish a direct transactional relationship. The opposition fails to provide sufficient facts to show that a duty to disclose can be adequately pled, therefore the Demurrer is **SUSTAINED** without leave to amend.

Economic loss rule. Finally, Defendant alleges that the Sixth Cause of Action is barred by the Economic Loss Rule. The Economic Loss Rule does not bar fraudulent concealment claims. *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828. The Demurrer is **OVERRULED** on the grounds that it is barred by the Economic Loss Rule.

In summary, the Demurrer is **OVERRULED** as to the First, Second, Third, and Fourth Causes of Action. The Demurrer is **SUSTAINED** without leave to amend as to the Sixth Cause of Action on the grounds that Plaintiff has failed to establish a duty to disclose. Defendant has provided a proposed order that will be modified to reflect the Court’s ruling.

IN RE: SAWICKI

CASE NUMBER: 26CV-0211224

Tentative Ruling on Petition for Change of Name: Petitioner Barbara A. Sawicki seeks to change her name to Barbara A. Bachrach. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.